

25STCV37750 25STCV37750

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Case Number: 25STCV37750 Hearing Date: July 22, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

22, 2026 TRIAL

DATE: Not set

CASE: Mario Rodriguez v. Tyler Perry, et al.

CASE NO.: 25STCV37750

PLAINTIFF'S

MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE,
FROM DEFENDANT LIONS GATE FILMS INC., AND FOR MONETARY SANCTIONS OF \$11,760

DEFENDANT

LIONS GATE FILMS INC.'S OPPOSITION TO PLAINTIFF'S MOTION TO COMPEL RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR MONETARY SANCTIONS; AND,
IN THE ALTERNATIVE, MOTION FOR RELIEF FROM WAIVER

PLAINTIFF'S

MOTION TO COMPEL THE DEPOSITION OF DEFENDANT TYLER

PERRY;

REQUEST FOR MONETARY SANCTIONS OF \$7,372.50 AGAINST DEFENDANT TYLER PERRY AND
HIS COUNSEL OF RECORD, QUINN EMANUEL URQUHART & SULLIVAN, LLP

Plaintiff

Mario Rodriguez ("Rodriguez" or "Plaintiff") alleges that Tyler Perry ("Perry"), a film director and producer, began "grooming" Rodriguez by casting Rodriguez in the film production, Boo! A Madea Halloween. This film, and others produced by Perry, were distributed by Lions Gate Films, Inc. ("Lionsgate"). Thereafter, Perry dangled future roles as a pretext to invite Rodriguez to Perry's private residence where Perry sexually assaulted Rodriguez.

Before

the court are three motions: (1) Plaintiff's motion to compel Lionsgate's responses to Request for Production of Document, Set One; (2) Lionsgate's motion for relief from waiver; and (3) Plaintiff's motion to compel Perry's deposition. The court begins by addressing together the first and second motions.

I. MOTIONS RE LIONSGATE'S DISCOVERY RESPONSES AND WAIVER

A.

Background

On June 12, 2026, Plaintiff filed this motion to compel Lionsgate to serve verified responses, without objection, to Plaintiff's Requests for Production of Documents, Set One, and to produce all documents responsive thereto. Plaintiff requests sanctions against Lionsgate and its counsel of record.

On June 25, 2026, Lionsgate filed an opposition and, alternatively, a motion for relief from the waiver of its objections.

On July 9, 2026, Plaintiff filed an opposition to Lionsgate's motion for relief from waiver.

On July 15, 2026, Lionsgate filed a reply.

On the same day, Plaintiff filed a reply.

B. Discussion

There is no dispute that Defendant did not timely serve responses. Defendant argues Plaintiff's motion to compel should be denied because Plaintiff improperly served the production requests by mail. Despite serving all other discovery requests by electronic service, Plaintiff served the requests for production by mail on April 7, 2026. Defendant did not see production demands in its mail and did not serve responses—a mixture of unverified responses and objections—until June 17, 2026.

The argument lacks merit. Defendant has not produced an express electronic service agreement between the parties. Absent such an agreement, service by mail is an authorized method of service under the Code of Civil Procedure.

Alternatively, Defendant argues the court should grant its motion for relief from waiver of objections.

Generally, a party to whom discovery requests are directed waives any right to object to such requests including on the basis of privilege or attorney-work product doctrine, if the party failed to serve timely responses. (Code Civ. Proc., § 2031.300 (a).)

A party may be relieved of the waiver if “(1) [t]he party has subsequently served a response that is in substantial compliance with [the Discovery Act]” and “(2) [t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.”² (Code Civ. Proc., § 2031.300, subd. (a)(1)-(2).)

The Civil Discovery Act does not include a definition of “substantial compliance,” and few cases have addressed the circumstances under which a response will be deemed not in substantial compliance.³ (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 (St. Mary).)⁴ Substantial compliance means actual compliance with respect to the substance

essential to every reasonable objective of the statute.” (Id. at p. 790.)” However, substantial compliance should not be understood as requiring actual compliance with every specific statutory requirement.” (Ibid.)” A court may not find that only some portions of a document containing responses are code-compliant, but must instead determine whether the document as whole substantially complies.” (Ibid. [this position is supported by the fact that there is an effective statutory vehicle to compel a responding party to cure unsatisfactory responses].)”

Here, Lionsgate does not meet its burden to show it has satisfied the first requirement to merit relief: serving responses in substantial compliance. As stated above, Lionsgate served a mixture of unverified responses and objections. Unverified discovery responses are tantamount to no response at all. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 635-36.) Lionsgate also failed to provide a privilege log to support its assertions of privilege. The court finds Lionsgate late responses do not substantially comply with the Code. Relief is therefore unwarranted.

Monetary
Sanctions

Notwithstanding the court’s ruling, the court declines to award Plaintiff sanctions. Although Plaintiff properly served the production demands, the parties’ course of conduct supports an implicit understanding that documents would be served electronically. Indeed, no disputes have arisen concerning written discovery that Plaintiff served to Lionsgate by electronic service. Given this background, the court finds it would be unjust to award Plaintiff sanctions.

C. Conclusion

Plaintiff’s motion to compel is GRANTED. Lionsgate is ordered to serve verified responses, without objections, within 15 days of this order.

Lionsgate’s motion for relief from waiver of objections is DENIED.

Plaintiff's

request for sanctions is DENIED.

II. DISCUSSION

RE MOTION TO COMPEL PERRY'S DEPOSITION

A. Background

On June 17, 2026, Plaintiff filed this motion to compel Perry to appear for deposition. Plaintiff requests sanctions against Perry and its counsel of record.

On July 9, 2026, Perry filed an opposition. Perry requests sanctions against Plaintiff and his counsel of record.

On July 15, 2026, Plaintiff filed a reply.

B. Discussion

Plaintiff

seeks an order to compel Perry to appear for deposition because Perry did not appear for a properly noticed deposition on June 9, 2026.

The motion

lacks merit. Plaintiff acknowledged that

Perry was not available for deposition in June 2026 well before serving the deposition notice. (See Henderson Decl., Ex. D; Delshad Decl., Ex. K.) Moreover, Perry already agreed to appear for an in-person deposition on December 9, 2026.

(Delshad Decl., Ex. K.) There are no grounds to grant the motion.

Monetary

Sanctions

Perry

requests sanctions against Plaintiff and his counsel of record. Given the court's ruling, the finds sanctions are warranted. Accordingly, Plaintiff and his counsel are ordered pay sanctions in the sum of \$2,500.

C. Conclusion

The motion
to compel is DENIED.

Perry's
request for sanctions is GRANTED.
Plaintiff and his counsel of record are ordered to pay, jointly and
severally, sanctions in the sum of \$2,500 within 30 days of this order.

III. DISPOSITIONS

1. Plaintiff's motion to compel responses is
Granted. Lionsgate is ordered to serve
verified responses, without objections, within 15 days of this order. Plaintiff's request for sanctions is Denied.

2.
Lionsgate's motion for relief from waiver of objections is Denied.

3. Plaintiff's motion to compel deposition is Denied. Perry's
request for sanctions is Granted.
Plaintiff and his counsel of record are ordered to pay, jointly and
severally, sanctions in the sum of \$2,500 within 30 days of this order.

Moving parties to give notice, unless waived.

Dated: July 22, 2026

Brock T. Hammond

Judge of the Superior Court